PATRICK MUNYARADZI
and
ROBERT GEDDES
and
CRAIG SPONG
(In his capacity as the Trustee for the Time Being of 20 CLAIRWOOD ROAD TRUST)
And
OLD ALEXANDRA PARK EAST RESIDENTS ASSOCIATION
versus
SALIM ESMAIL PATEL, N.O (Salim Patel Trust)
(In his capacity as the Trustee for the Time Being
Of the SALIM PATEL TRUST)
and
AMEERA YASIN PATEL, N.O (Salim Patel Trust)
(In his capacity as the Trustee for the Time Being Of the SALIM PATEL TRUST)
and
CITY OF HARARE

HIGH COURT OF ZIMBABWE
CHIRAWU-MUGOMBA J
Harare, 25 June, 3, 6, 13, 14 and 15 July 2026.

*W. MUSIKADI with K. CHIKONAMOMBE,* for the applicants
*A. MOYO with N. CHIDEMBO,* for the 1st and 2nd respondents
*T. CHAMISA,* for the 3rd respondent

**COURT APPLICATION**

CHIRAWU-MUGOMBA J: For those of us who have stayed in Harare for some time, one only needs to walk about or drive in different suburbs and industries to witness the phenomenal growth in the construction or renovation of houses, hotels, lodges, offices, shopping malls and industries. It is a complete building revolution. However as courts, our duty is to interpret whether or not the relevant laws in building ought to or have been complied with. As for the ambience, we can only admire from afar. Ultimately, our duty as courts is to adjudicate not the ambience of a building but on the law.

The dispute before the court concerns a house in the suburb of Old Alexandra Park. The first applicant is one Patrick Munyaradzi who states that he is the owner of a

property called Stand 5243 Salisbury Township of Salisbury Township commonly known as 19 Clairwood Road, Old Alexandra Park. This property is adjacent to the first and respondent's property, which is the subject matter of the dispute. The second applicant is one Robert Geddes who owns stand 5207 of Salisbury Township, otherwise known as 14 Falmouth Road, Alexandra Park. It is significant to note that this property is also adjacent to that of the first and second respondents. The third applicant is a trustee and beneficial owner of stand 5246 of Salisbury Township otherwise known as number 20 Clairwood Road, Old Alexandra Park. The fourth applicant is the Old Alexandra Park East Association, a common law *universitas* operating on the basis of a constitution. The first respondent is described as being the first trustee of the Salim Esmail Patel Trust and is cited in his official capacity. The second respondent is described as a second trustee of the Salim Esmail Patel trust and is cited in his official capacity. The third respondent is the City of Harare, the local authority in whose jurisdiction the contested property is located. This property is located on stand 5227 Salisbury Township of Salisbury otherwise known as 13 Falmouth Road, Alexandra Park, Harare, from henceforth, ' the property'.

The contentions by the applicants through the agency of the first applicant are simple and straightforward. They seek an order compelling the first and second respondents to comply with the provisions of s26 of the of the Regional, Town and Country Planning Act [ Chapter *29:12*], ' the Act' more particularly that they, the Trust, their agents, employees, assignees, and/or associates be prohibited from operating a lodge or a hotel at the property, further that they demolish at their own costs a double storey lodge or hotel at the property and restore it to its original state prior to the construction of what they term the illegal structure and upon failure to do so, that this be done by the Sheriff of the High Court. They also seek an order that the third respondent be barred from issuing a change of use permit or development permit to the first and second respondents or the Salim Patel Family Trust before an environmental impact assessment certificate issued by the Environmental Impact Assessment Agency (EMA), and that all legal processes that are required have been complied with in terms of s26 of the Act. They also seek alternative relief that in the event that a permit has

already been issued by the third respondent, that it be declared null and void for want of compliance with s26 of the Act. Further that an order be issued for the demolition of the illegal part of the property and that the applicants be given access to the file that relates to the change of use permit. The applicants finally seek an order of costs on the punitive legal practitioner scale.

The first applicant avers that sometime in May 2025, he discovered that there was massive construction at the property and that these were at an advanced stage. The first and second respondents had erected a massive and tall perimeter or boundary wall. On the 23rd of May 2025, a letter was addressed to Salim Patel and copied to the third respondent's officials requesting for a meeting. A site meeting was held on the property on the 3rd of June 2025 in the presence of the fourth applicant, the third respondent's chief planner and the building contractor who was carrying out the construction of the double-storey lodge or hotel. It was established that the construction was for at least ten double rooms all en-suite, with balconies, a central dining room and recreational facilities. This is not in sync with the residential status of the area. These actions are illegal for want of a development or change of use permit. Despite claims by the first respondent that they hold a permit to operate a guest house, none was produced. To date and since request, the first and second respondents have not availed a development or change of use permit. What has been produced are building plans approved by the third respondent. The applicants aver that the approval of these plans is irregular in the face of no development or change of use permit. A letter of demand was addressed to the Director of Works of the third respondent. This related to a copy of the permits issued in terms of s26 of the Act; copies of approved building plans, the information taken into account in granting the change of use or development permit; and whether an environmental impact assessment certificate had been issued. The third respondent in its response stated that no formal change of use permit was granted by it to regularise the use of the property as a lodge or double storey hotel in a residential area. The construction of a double storey hotel or lodge will infringe on applicant's rights to privacy as users will be able from the balconies to see the applicants' properties. On the 9th of September 2026, a meeting was convened

between the applicants, the first and second respondents. No permits were produced. Another meeting was held on the 17th of September 2025 at the property and it turned that as earlier observed, there was construction of double storey hotel/lodge on the premises without the necessary permits having been obtained. The applicants have thus established a clear right in that their right to be heard has been infringed and the first and second respondents and the trust are violating the law. The applicants face a serious actual or reasonably apprehended injury. The construction will affect local infrastructure especially sewer and drainage systems leading to potential health hazards. The balance of convenience further favours the applicants. There are many stakeholders in the area who will suffer from the operations of the lodge/hotel including children attending the nearby Alexandra Primary School. This includes diseases due to a strained sewer system and also accidents. It is in the best interests of the pupils at the named school that the first and second respondents obtain an EMA certificate and change of use permit. The development of a lodge/hotel is not in sync with the residential zoning. In the event that the first and second respondents have been issued with a change of use or development permit, the applicants seek an order that such be declared null and void for want of compliance with s26(3) of the Act as the applicants were not notified of this. Collectively, the applicants seek an order that the application for an interdict be granted. Further, that the first and second respondents, their agents, employees, assignees and/or associates be interdicted from operating a lodge/hotel at the property; that they be ordered to demolish at their own cost, the double storey lodge or hotel and restore the property to its original state and in the event of failure, refusal or neglect, that the Sheriff of the High Court be authorised to take the necessary steps to ensure that the property is restored to its original state; that the third respondent be barred from issuing a change of use or development permit before they acquire an EMA certificate and follow the requirements of the law for change of use and payment of costs on a higher scale. Alternatively, they seek nullification of any change of use or development permit issued on the basis of non-compliance with s26(3) of the Act. The remainder of the relief is as per the main relief paragraphs three to six.

The application is strenuously opposed by the first and second respondents. They aver that at the time the property was purchased in 2015, it was operating as Lelethu Guest House. They simply stepped into the shoes of the formers owners in running the place. Following the acquisition, they made two alterations and changed the name of the lodge to Jacaranda. From 2019 onwards, Jacaranda Lodge has been operating without challenges and serves local and international clientele. Sometime in 2024, a strategic decision was taken to expand the operations of Jacaranda Lodge through the addition of new rooms. This was not an alteration of the business operations but simply addition of new rooms to cater for the growing business demand. This was informed by the fact that the area has fast turned into a commercial zone with offices for an airline, law firm and an audit firm. The third respondent approved the structural changes necessary to give effect to the proposed expansion. Construction activities are at seventy-five percent completion. The applicants are not entitled to the relief sought because the activities undertaken at the property in respect of the lodge are lawful. The applicants have no clear rights in terms of s26(3) of the Act on which their application is premised; the pre-emptive order sought seeks to invite the court to usurp the statutory powers and town planning functions of the third respondent. Further the applicants have no clear right as the lodge has operated lawfully with all the necessary permissions. These include a lodge's certificate of registration as a designated tourist facility issued in terms of s39 of the Tourism Act, [ Chapter *14:20* ], a lodge's operator's licence in terms of the same act and a lodge's municipal license. There is therefore no illegality. The applicants are not entitled to a demolition order because the plans were approved and requisite inspections carried out. In terms of s32 of the Act, the third respondent is given a discretion regarding measures to impose following a contravention if any. Demolition is a drastic remedy and more moderate measures can be adopted such as requesting that the offending party submit an application for demolition. This is in keeping with s71 of the Constitution and the right not to have one's home demolished. It is only the third respondent who can invoke s32. Planning laws have been affected materially through a constitutional court judgment that declared s32(2) constitutionally invalid. The applicants cannot bar the third respondent from issuing a change of or development permit. The lodge has added

significant value to the area. The Act provides alternative remedies to the applicants contrary to their assertion. The said respondents deny that the property is located in a residential zone.

In a shocking development, the third respondent opposes the application and puts up a fight in the corner of the first and the second respondents. At the hearing, I was quite taken aback but perhaps not surprised by the submission by Mr. *Chamisa,* that inexplicably, the whole file pertaining to the disputed property had , 'gone missing'. I dare say, the role of the third respondent in my view was to provide clarity to the court. The third respondent avers that the lodge has been in existence and operational for the past ten years and that no resident opposed this. Furthermore that there are approved plans for the expansion of the place. The deponent also shockingly asserts that, 'there must be a permit' issued but it could not be located. Further that there must be provision of a separate sewer system on the approved plans, so there is no danger of waterborne diseases.

In the answering affidavit, to note is that the applicants assert that the respondents have skirted the issue of whether or not a change of use or development permit was issued and if such was issued, whether this was done in accordance with the law. The fact of the tourism permit does not answer the issues posed. Although the first and second respondents plead exhaustion of domestic remedies, they have failed to show which law is applicable. Reference to the Constitutional Court judgment is misplaced as the applicants case is premised on s26 of the Act. The relief sought in *casu* is distinguishable.

As I was researching and preparing judgment, it exercised my mind whether or not this dispute ought to have been adjudicated in the Administrative Court. I thus caused a letter to be addressed to the legal practitioners directing them to file supplementary heads of argument on this issue. On this specific legal issue, the applicant submits that the Administrative Court is a creature of statute and has no inherent jurisdiction and it can only exercise powers within the four corners of the statute governing its operations. This is as per s4 of the Administrative Court Act [.Chapter *7:01*]. That act, in particular in s38(1) (a) (i) gives the Administrative Court

power to hear appeals where a person is aggrieved by any decision made or deemed to have been made by a local authority in connection with an application for a development permit or change of use permit or preliminary permission. Its jurisdiction is therefore appellate. What is before the court is not an appeal against the decision of the third respondent to issue a development permit or change of use permit or preliminary permission which would ordinarily trigger the application of s38 (1). The order sought by the applicant relates to compelling of the first and second respondents to obtain a change of use or development permit as per s26 of the Act and an interdict barring the first respondent from operating a hotel or a lodge until such time as it has obtained a permit and a demolition order. In the alternative, the applicant seeks declaratory orders. In terms of s4 of the Administrative Court Act, that court has no powers to grant the relief sought. They cite *Bruce vs. ECONET Wireless (pvt) Ltd,* HH-52-09 as authority for the assertion that the High Court is the proper court for seeking relief.

*Per contra,* the first and second respondents submit that the Administrative Court has jurisdiction instead of the High Court. The dispute at hand can properly be resolved through s38 of the Act that sets out a comprehensive dispute resolution mechanism. This present matter under s26 of the Act falls squarely within the jurisdiction of the Administrative Court. The matter therefore ought to be struck off the roll for want of jurisdiction.

I note that in the alternative relief, the applicants seek relief that mainly focuses on the assumption that a development permit has been issued without notifying applicants and also barring the third respondent from issuing the permits. However, in the heads of argument the assertion by the third respondent that the permit for the lodge cannot be found and indeed that there was no development or change of use permit issued, puts paid to the alternative relief sought. I am persuaded by the submissions by the applicants that the appropriate court is the High Court and not the Administrative Court whose powers are clearly set in s4 of the statute as follows,

**Jurisdiction, powers and authority of Court**

(1)The Court shall have such jurisdiction, powers and authority as may be conferred upon it by this Act or any other enactment.

(2)The Court may, in relation to any matter referred to it in terms of this Act or any other enactment—

(a)in relation to an appeal or review, confirm, vary, reverse or set aside the decision, order or action concerned or refer the matter back to the body, person or authority concerned for further consideration; or

(b)make such determination or order or exercise such powers as may be provided for by any other enactment.

Further, s38 sets out the appeals process as follows,

**Appeals**

(1)Any person—

(a)who is aggrieved by any decision made or deemed to have been made by a local planning authority in connection with an application for—

(i)a permit or preliminary planning permission; or

(ii)any permission required in terms of a development order, building preservation order or tree preservation order; or

(iii)an extension of time as contemplated in paragraph (d) of subsection (1) of section twenty-two or subparagraph (ii) of paragraph (a) of subsection (2) of section twenty-four

;may, within one month from the notification of such decision; or

(b)upon whom—

(i)a building preservation order; or

(ii)a tree preservation order; or

(iii)an enforcement order; or(iv)a notice in terms of section thirty-five;

has been served or who is otherwise aggrieved by such order or notice, may, within one month from the serving of the order or notice; or

(c)who is permitted in regulations made in terms of section sixty-eight to appeal in respect of any matter specified in such regulations may, within the period provided for in such regulations;

> or such longer period as the President of the Administrative Court may in writing authorize, appeal to the Administrative Court in such manner as may be prescribed in rules and the Administrative Court may make such order as it deems fit.

The fact that the High Court has jurisdiction was put beyond doubt as to the nature of the dispute itself in the *Nell* matter (*supra)* by OMERJEE J as follows,

> "On the date of hearing the first and second defendants raised certain points *in limine* that, in my view, can more conveniently be dealt with together as opposed to separately.
>
> My understanding of the points raised *in limine* is as follows – "
>
> a. That this court lacks jurisdiction to hear the matter because *s*. 38 of the Planning Act stipulates that any person aggrieved by a decision of a local planning authority has one month in which to lodge an appeal with the Administrative Court. In *casu*, the plaintiff, apart from instituting proceedings in the wrong fora was also now out of time to appeal against the decision made by the second defendant.
> b. .....
>
> I consider that both points *in limine* are ill conceived and without merit. Firstly, an appeal lies with the Administrative Court, only if the decision being challenged is one, which was made or deemed to have been made in terms of the Planning Act. Put differently, not all challenges against decisions made by a local authority lie with the Administrative Court unless they are made in terms of the Planning Act.

The applicants on the merits submit that the issue for determination is whether or not the first and second respondent's construction and running of a lodge/hotel at the property is lawful in the absence of a development or change of use permit as required by the provisions of s26 of the Act. The first and second respondents have failed to show that they hold the necessary permits

The running of the lodge/hotel and the construction falls within the ambit of development and hence the need for compliance with the law by the first and second respondents. Three ancillary questions arise and these are (a) whether the operations of the lodge/hotel/guest house amount to development in terms of the Act; and if so, whether such development was authorised and if not whether such authorisation gives rise to a cause of action for a compelling order. The definition of development in s22(1) (b) (i) of the Act covers the situation of the first and second respondents as it was interpreted in, *The City of Mutare vs*. *The Wildlife Society of Zimbabwe,* SC 79/01. The first and second respondents are conducting commercial business in a residential

area. If an activity or operation amounts to development, then a permit is required- *Nell (supra)*. The requirements of obtaining a permit are mandatory as per s26 of the Act.

Operating a tourism facility still requires a permit. The requirements for a *mandamus* have been set in this jurisdiction – see *Chironga and anor vs. Minister of Justice, Legal and Parliamentary Affairs and ors,* CCZ-14-20. The applicants have established a clear right and not a *prima facie* right as defined in *Movement for Democratic Change (Tsvangirai) and ors vs. Timveous and ors,* SC- 9-22. See also *Heuer vs Two Flags Trading (pvt) Ltd and ors,* SC-45-24 and *Judicial Service Commission vs. Zibani and ors,* SC-68-17.

The applicants have a right contrary to the assertions of the respondents to be consulted for purposes of applications for a development permit. The case referred to by the first and second respondents of *Chitungwiza Residents Trust vs. Minister of Local Government, Public Works and National Housing,* CCZ- 02-25 is distinguishable. The applicant's rights are located in s26(3) of the Act which were not declared invalid by the Constitutional Court. The applicants face actual and reasonably apprehended injury. The lodge and the construction at the property will likely put a strain on infrastructure and resources. The third respondent has not stated clearly whether the construction will have an impact on the environment thus requiring an EMA certificate. It is also clear that there is no other remedy.

In the heads of argument, the first and second respondents submit that due to the doctrine of separation of powers, the courts must not interfere with the functioning of local authorities. The first and second respondents have shown that they have all licences and permits for them to build and operate a lodge at the property. The applicants do not have the *locus standi* to seek demolition of the property. I note that the heads of argument unnecessarily in my view give a long back ground to the dispute. In further submissions, the first and second respondents aver that the remedy of an interdict is extra ordinary in nature and must not be granted lightly- *Trek Petroleum (pvt) Limited vs. Zimbabwe Revenue Authority,* SC-56-17 and *Masimba Charity Huni Fuels (pvt) Limited vs Kadurira,* SC-39-22. See also *Nkomo vs Minister of Local Government, Rural and Urban Development and ors, CCZ-06-16* and *Mayor Logistics (pvt) Limited vs.*

*ZIMRA,* 2014(2) ZLR 78 (C). A litigant cannot seek to stop lawful conduct- *Magaya vs. Gender Commission of Zimbabwe,* SC-105-21. The legal issues to be addressed are whether the business operations undertaken by the lodge on the property are lawful; whether the construction activities and/or physical structures located on the property are lawful and whether the applicants are in any event entitled to the pre-emptive order sought against the third respondent? They submit that the operations at the property are lawful as supported by the lodge's certificate, operator's license and municipal license. The construction activities on the lodge are lawful as supported by a valid approved plan. The third respondent has confirmed that there is a permit that allows operations of a lodge at the premises. The mere fact that the permit cannot be located does not mean that it does not exist. Even if it cannot be located, this will mean that there will be a material dispute of fact. The approval of the plans means that there are no regulatory impediments at hand. There has been no development other than the addition of new rooms. The applicants must prove the alleged statutory violations instead of casting the onus on the first and second respondents- see *Shar vs. Nherera,* CCZ-9-25. The applicants in terms of s26 have no right to approach the court for a demolition order. No such right exists under the law, - see s32 of the Act for action that can be taken. Granting an interdict is tantamount to usurping the powers of the third respondent – *Affretair (pvt) Limited and anor vs. MK Airlines (pvt) Limited,* 1996(2) ZLR 15(S). The *Chitungwiza vs. Minister of Local Government , Public Works and National Housing* matter (supra) set aside s32(2) ( c ) –(d) and 37(1) (a) (i) of the Act as being inconsistent with the constitution specifically s74 and therefore invalid. The said respondents also seek an order for costs on a punitive scale on the basis of the litigation being frivolous.

In its short heads of argument, the third respondent clarifies the issue of plans. It submits that the lodge has been operational for years with no challenge ever being brought. Further that there is a permit that allows the lodge to operate but the file cannot be located. The buildings are being done in terms of an approved plan. That there is no change of use to the land in recent years.

The oral submissions by all parties largely mirror those already in the heads of argument.

Given all the above, the following become common cause:-

a. The property is located in a residential area.

b. The applicants are neighbours of the property in the area called Alexandra Park East.

c. The property is operating as a lodge.

d. The lodge has licences and permits for tourism purposes.

e. The permit to operate a lodge is 'missing' from the offices of the third respondent.

f. There is massive construction on the property to expand the lodge.

g. The applicants contend that the first and second respondents ought to have complied with s26(3) of the Act as change of use and massive construction on the property amounts to development.

h. The first and second respondents contend that there is no need to comply with s26(3) because a lodge has been operational on the property for a long time and what they are simply doing is to add extra rooms. They also aver that the current developments are being done with the approval of the third respondent.

i. The third respondent contends also that the lodge has been operating on the property for a long time without complaints and that the first and second respondents have approved plans.

The above issues are very clear and the claim by the first and second respondent that there are disputes of fact is fallacious.

The matter in my view is not about how long a lodge has been operating on the property; or the fact that the area now has other commercial businesses and that the value of the

area has increased or indeed who is making use of the lodge or guest house. While the applicants came closest to identifying the legal issues arising, I will recast it as follows:-

1. Was the Salim Esmail Patel Trust required by the law to obtain a change of use or development permit for the property?
2. If so, whether or not the applicants are entitled to an interdict and the remedies that flow therein?

Section 26(1) generally deals with an application for a permit or preliminary planning permission as follows:-

**26. Application for permit or preliminary planning permission**

(1)An application for a permit or preliminary planning permission shall be made to the local planning authority in such manner and shall contain such information as may be prescribed and shall be accompanied by the consent in writing of—

(a)the owner of the land; and

(b)**where the application relates to development which involves an alteration—**

**(i)in the character of the use of any land or building; or**

(ii)in the conditions of title to the property;

the holder of any real right registered over the property concerned:

Section 26(3) reads as follows:-

Where an application in terms of subsection (1)—

(a)may, in terms of an operative master plan or local plan or an approved scheme, only be granted by the local planning authority—

(i)after special consideration of the circumstances of the particular case; or

(ii)in the case of such scheme, by special consent of the local planning authority; or

**(b)relates to development which does not conform to the development existing or normally permitted in the area; or**

(c)relates to development which could, in the opinion of the local planning authority, have an adverse effect or important impact on the locality or the area generally; or

(d)relates to development which conflicts with any condition which is registered against the title deed of the property concerned and confers a right which may be enforced by the owner of another property;

the local planning authority shall require the applicant, at his own expense, to give public notice of the application and to serve notice of the application on every owner of property adjacent to the land to which the application relates and such other owners as the local planning authority may direct and to submit proof that such notice has been given.

Section 22 answers what development is as follows:-

**Meaning of "development" in Part V**

(1)Any reference in this Part to development, in relation to any land or building, means any of the following—

(a)the carrying out in, on, over or under the land of any building or mining operations, other than—

(i)the carrying out in any building which is not subject to a building preservation order of any internal works which do not materially affect the external appearance of that building;

(ii)the carrying out by or on behalf of the authority responsible of any operations in connection with—

A. the renewal, maintenance or improvement of any existing public utility service not within a scenic beauty area; or

B. the installation or construction of any new public utility service which is shown on a general plan or is within a road or is within the area of an operative master plan or local plan or an approved scheme and accords with that plan or scheme;

(iii)the carrying out of any building operations in connection with the use of any land or building thereon for agricultural purposes unless such operations—

A. are to be carried out within two hundred metres of the centre line of any road; or

B. are to be carried out on any property which is less than one hundred hectares in extent; or

C. are to be carried out in a scenic beauty area;

b. the altering of the character of the use of any land or building, other than—

(i)where the existing use and the proposed use both fall within the same prescribed group of land or building uses;

(ii)the use of any land or building thereon for agricultural purposes unless such use is to be established on any property which is less than one hundred hectares in extent.

The applicants rely on the Supreme Court of Zimbabwe decision in, *The City of Mutare v The Wildlife Society of Zimbabwe*- SC79/2001 at page 8 as follows:

> *"The real meaning of section 22(1)(b)(i) of the Act is to be found by separating the concepts of "land" on the one hand, and "building" on the other. Thus, it is not "development" when one changes the use of land, so long as the new use and the old use both fall within the same prescribed group of land uses. Nor is it "development" when one changes the use of a building in the same circumstances. Compare Leadership Education & Advancement Foundation v C T Municipality 1994 (1) SA 825 (C) at 834C et seq. But to construct a building on land cannot be described simply as a use of the land. It is more than that. It is construction. It is development. It is not covered by the sub-section".*

In my view, the operation of a lodge at the premises and more critically, the massive construction ostensibly to expand the lodge amounts to development. It is not about the number of visitors that come to the lodge or that there is in place a tourism or other related permits. It is about following the planning laws of the country. It is also not about the issuance of approval by the third respondent. The third respondent is very much aware that there has been a flouting of the law and this explains why they initially claimed that there must have been a permit then went on to submit that the file relating to the property had mysteriously disappeared. As they rightly stated in the letter responding to the applicants' query, approved plans do not amount to a permit. It is common cause that the area is residential and the development on the property falls within s26(3) (b) since it relates to development which does not conform to the development existing or normally permitted in the area. They turned a residential property into a lodge and still intent to expand the lodge. The first and second respondents therefore ought to have complied with s26(3) of the Act and apply for special consent. The fact that the property was being run as a lodge at the time of purchase is neither here not there. It is trite that an illegality cannot turn into a legality due to a change in ownership. It is also immaterial that the applicants have not complained for a long time.

I am fortified in my view by the enduring *ratio* by OMERJEE J, in the *Bruce* case, (supra) as follows,

> "The facts in *casu* show that 1st defendant erected a cellular base station or mast on the Stand. To my mind a structure such as this falls within the definition of a building as provided for by the Planning Act. In this regard *s.* 2 thereof defines "building" as including *'any structure or erection or part thereof, including a swimming pool'*.
>
> It thus follows that by virtue of *subpara.* (a) of *subs.* (1) of *s.* 22 of the Planning Act the construction of the mast constituted development and was therefore subject to the requirements of Part V of the Planning Act.
>
> Additionally and in any event the facts as can be gleaned from the papers reveal that the Stand, measuring 140 square metres, is part of a piece of land that is designated for use as a recreational park. As already alluded to *s.* 22(1)(b) stipulates that the altering of the character of the use of land constitutes development within the meaning of that term in the Planning Act, save if the new use and the old use both fall within the same prescribed group of land uses (*subpara.* (b)(i)).
>
> The erection or construction of a cellular mast on land designated for use as a recreational park can hardly be described as simply change of use falling within the same prescribed group of uses of land. It is more than that. It amounts to the altering of the character of the use of land and therefore is development as defined by the Planning Act. (See generally Mutare City Council v. Wildlife Society of Zimbabwe 2001(2) ZLR 275(S)
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> What this means is that, in *casu*, 1st defendant was required by law to obtain a planning permit *i.t.o. s. 26 of the Planning Act"*.

I now turn to the second issue of whether or not the applicants have made a case for the granting of an interdict. It has not been denied that the first to the third applicants own and occupy properties adjacent to the property. In terms of the Act, they are entitled to be given notice of any developments. They cannot be said to lack *locus standi*. That is why, the law is very clear that they should be notified so that they can object if need be. As a matter of law, s26 was crafted in such a way that the third respondent has no choice but to consider the objections and also notify an applicant of any before making a decision. They therefore have a clear right provided for by the law. It has also been held that land use must be guarded jealously and not changed willy-nilly hence s26(3) of the Act- see *Jamu vs. City of Harare,* SC-33-08.

The injury faced by the applicants is not abstract but is actual and reasonably comprehended. As owners of adjacent properties, there is danger that they will lose their privacy; that the volume of traffic may increase substantially; that there is genuine security risk attached to the increase in the number of people frequenting the area; that the infrastructure in the area may be subject to damage and that a sewer system

meant for a few households may come under immense pressure. It is insincere for the respondents to dismiss the assertion of disease breakout especially in Harare, where I take judicial notice that there have been cases of cholera outbreaks. There is also the added risk of damage to the environment.

As already stated, because there has not been an application by the first and second respondents in terms of s26(3) which would have afforded the applicants an opportunity to be heard and pursuing other relief depending on the outcome, the applicants cannot be said to have any other remedy. Therefore the relief sought of an interdict is apt.

I now turn to the draft order in the main having found that the alternative is premised on an erroneous assumption that a permit has been granted. This is directly related to demolition as sought by the applicants.

In the *Chitungwiza Residents Trust* matter ( *supra* ), the Constitutional Court in a judgment dated the 5th of February 2025, laid bare the provisions in the Act that the applicant sought to be impugned as follows,

**"The Constitutional Infringement**

The provisions that the applicant impugns are contained in s 32(2) and s 37(1) of the Regional, Town and Country Planning Act. Section 32(2)(c)-(d) of the Act provides as follows:

"(2) Without derogation from the generality of paragraph (b) of subsection (1), an enforcement order may require—

.....

(c) the demolition or alteration of any building;

(d) the discontinuance of any operations on or of any use of the land concerned or of any use of any building thereon."

Section 37(1)(a)(i) of the Act deals with the consequences of non-compliance with enforcement orders. It stipulates as follows:

"(1) If, within the period specified in an enforcement order or extension thereof granted in writing by the local planning authority, any steps required by such order to be taken, other than the discontinuance of any use of any land or building or of any operations, have not been taken, the local planning authority may—

(a) authorise any employee or agent—

(i) to enter on the land with such vehicles and equipment as may be necessary for the purpose and take such steps as may be reasonably necessary to ensure compliance with such order; and ....."

The relevant sections of the order of the Constitutional Court read as follows,

1. .....

2. Section 32(2)(c) and section 32(2)(d) of the Regional Town and Country Planning Act [*Chapter 29:12*] be and are hereby declared to be inconsistent with section 74 of the Constitution and therefore invalid.
3. Section 37(1)(a)(i) of the Regional Town and Country Planning Act [*Chapter 29:12*] be and is hereby declared to be inconsistent with section 74 of the Constitution of Zimbabwe and therefore invalid.
4. The declarations of invalidity in terms of paragraphs 2 and 3 hereinabove shall not be retrospective and shall not affect the validity of any action taken or anything done prior to the date of this order.
5. Notwithstanding paragraph 4 hereinabove, the demolition order issued by the 4th respondent on the 8th of October 2020 be and is hereby declared to be unconstitutional and therefore invalid.
6. The orders of constitutional invalidity, issued in terms of paragraphs 2 and 3 hereinabove, be and are hereby suspended for a period of 12 months from the date of this order to enable the first, second and third respondents to amend the impugned legislation so that it complies with section 74 of the Constitution.
7. There shall be no order as to costs.

Apart from administrative measures and a moratorium on demolitions that has since also been lifted, I am not aware of any changes to the Act within the period stipulated in the order. I also note that the invalidity relates to demolitions of homes and in *casu,* the applicants merely seek that the property be restored to its original state as a residential one minus the lodge and the expansion. However, I agree with the submissions by the first and second respondents that demolition is a drastic procedure. I note however on demolitions, that ironically, while the first and second respondents seek shelter in the *Chitungwiza Residents* matter, they seek to invoke the same sections that were declared constitutional invalid in the Act, specifically s32.

I note that s27 of the Act provides for regularisation as follows,

**27. Regularisation of buildings, uses or operations**

> Where any development has been carried out in contravention of section twenty-four an application may be made in terms of section twenty-six in respect of that development and the local planning authority shall deal with that application in terms of that section but any permit granted thereunder shall take effect from the date on which the buildings were constructed, the operations were carried out or the use was instituted, as the case may be.

This section therefore deals with retrospective consent upon application. I take note that the structure on the property is not yet complete and there is a possibility that the third respondent having already approved the plans ( but this not affecting the fact that the construction is still illegal for want of compliance with s26(3), may grant consent. I am therefore inclined to give an opportunity to the first and second respondents to comply with the requirements of s26(3) of the Act and if that process fails, that the third respondent demolishes the offending structures at the property. This will also give the applicants an opportunity to object if they so wish. I note that in the *Chitungwiza Residents* matter (supra) one of the issues in contention was demolition without a court order.

The issue of a certificate from EMA, in my view is not material to the application. Should the first and second respondents lodge their application, this is one of the issues that the third respondent may have regard to.

On costs, although the applicants seek costs on a punitive scale, I do not perceive of any reason why this should be so. The issues raised are of public interest especially given the massive construction taking place in residential areas and the need to raise awareness on the requirements of the law. I will thus award costs on the ordinary scale.

**DISPOSITION**

The applicants have proved that the first and second respondents' require as a matter of law, special consent from the third respondent to operate a lodge and to expand it on

the property. Further that they do not have such permit and are operating illegally and also expanding the lodge illegally. That the approved plans do not turn an illegality into a legality as nothing stands on an illegality. The applicants have proved that they are entitled to an interdict. However, the remedy of demolition is drastic and the first and second respondents should be afforded an opportunity to apply for a permit in terms of s26(3) of the Act as read with s26(1). In my order, given the fact that it is not very clear that what is being operated on the property is a lodge, a guest house or hotel, I will grant an all- encompassing order. This certainly does not affect the fact that the first and second respondents due to change of use are required to comply with s26(3) of the Act.

**It is therefore ordered as follows:-**

1. The first and second respondents or anyone acting on their behalf or behest or anyone else that may be appointed as a Trustee of the Salim Patel Family Trust, are interdicted from running a lodge or guest house or hotel or continuing of construction as specified in the approved plans by the third respondent at the premises known as Stand 5227 Salisbury Township, otherwise known as 13 Falmouth Road, Alexandra Park, Harare until such as time as they have obtained special consent under s26(3) of the Regional, Town and Country Planning Act, [ [Chapter *29: 12*].
2. The first and second respondents must, within thirty (30) days from the date of this order, apply to the third respondent for special consent for the change of use and intensification of use involved in the proposed hotel/lodge as per the

provisions of s26 (3) of the Regional, Town and Country Planning Act, [ Chapter *29: 12*].

3. The notices to be served apart from the public notice as envisaged in s26(3) of the Regional, Town and Country Planning Act, [Chapter *29: 12*] shall be served on the affected persons through the office of the Sheriff of the High Court of Zimbabwe and the returns of successful service shall constitute proof that notice has been given.
4. Should the application to the third respondent fail at any stage either initially, on appeal or review, or any other subsequent legal processes, the third respondent shall with the assistance of the Sheriff of the High Court demolish from the property described in paragraph one of this order, the part or parts constructed without authority and restore the land to its original residential use.
5. Should the first and second respondents, fail, refuse or neglect to act as specified in paragraph two and three above within the stipulated time frame, the operative part in paragraph four above in relation to demolition shall be effected.
6. Pending compliance with paragraphs two and three above and the outcome of the application as envisaged in paragraph four above, no further construction shall take place on the premises described in paragraph one above.
7. The respondents shall jointly and severally, each paying the other to be absolved pay the applicants' costs on the ordinary scale.

*Chimuka Mafunga Commercial Attorneys*- Applicants' Legal Practitioners
*Kantor and Immerman,* First and second respondent's legal practitioners.
*Richard Legal Services,* Third respondent's legal practitioners